

11. **Lunatics.** — *Lunatics or Idiots*<sup>1</sup> might, before the Fines and Recoveries Act, have levied a *fine* or suffered a *recovery*, and the uses declared would have been valid until the fine or recovery was reversed. The *deed* of a lunatic or idiot may be void or not according to circumstances (*d*). The *feoffment* of a lunatic or idiot, while the feoffment operated tortiously, was voidable by the heir only (*e*). However, should a lunatic or idiot have engrafted a declaration of trust upon any legal estate passed by him, a Court of equity would have had jurisdiction to set it aside (*f*); though generally it declined to interfere even in this case as against a purchaser for valuable consideration without notice of the lunacy or idiocy (*g*).

12. **Bankruptcy.** — If a man be declared a *bankrupt*,<sup>2</sup> all the real and personal estate to which he is or may become entitled at the commencement of his bankruptcy, [or before his discharge,] vests in his trustee (*h*); but the surplus after payment of his debts still belongs to him (*i*), and of this interest he may create a trust.

13. **Alien as to real estate.** — An *Alien* might always have acquired real estate, whether freeholds or chattels real, by *purchase*, though he could not take it by operation of law, as by descent or *jure mariti*; and if he purchased it he might have held it until office found, but could not give an alienee a better title than he had himself (*j*). An alien,  
\*therefore, could only create a trust of real estate [\*27]  
until the Crown stepped in.

(*d*) See *Molton v. Camroux*, 2 Exch. 487; 4 Exch. 17; *Elliott v. Ince*, 7 De G. M. & G. 488; *Campbell v. Hooper*, 3 Sm. & Giff. 153.

(*e*) Co. Lit. 247, b.

(*f*) See *Cruise*, vol. iv. p. 130, vol. v. p. 253; *Neil v. Morley*, 9 Ves. 478.

(*g*) See *Price v. Berrington*, 3 Mac.

& Gord. 486; *Greenslade v. Dare*, 20 Beav. 285.

[(*h*) 46 and 47 Vic. c. 52, ss. 44, 54.]

[(*i*) Sect. 65.]

(*j*) An alien friend residing in the United Kingdom might by 7 & 8 Vic. c. 66, s. 5, take and hold lands or

<sup>1</sup> Conveyances voidable by them and their representatives, but good until set aside. *Mitchell v. Kingman*, 5 Pick. 431; *Snowden v. Dunlavey*, 11 Pa. St. 522; *Pearl v. M'Dowell*, 3 J. J. Marsh. 658; *Allis v. Billings*, 6 Met. 415; *L'Amoureux v. Crosby*, 2 Paige, 422; *Story*, Eq. Jur. § 228.

<sup>2</sup> Only the property of the bankrupt at time of assignment vests in assignees. *Ex parte Newhall*, 2 *Story*, 360; *Mosby v. Steele*, 7 Ala. 290.